

NAPCS Unionization Research — State Research Summary

New Jersey — PERC (NJ) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	New Jersey
Labor Board	PERC (NJ) — Public Employment Relations Commission of New Jersey
Governing Law	N.J.S.A. 18A:36A (NJ Charter School Law); N.J.S.A. 34:13A-1 et seq. All NJ charter schools are public schools; all employees are public employees.
Federal NLRB Jurisdiction	PERC (NJ) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — April 2026 (Registry v7) — 86 charter schools searched
Research Window	April 2026 (initial); May 2026 (reconciliation session)
Date Convention	Labor Board Certified date. Project-wide standard. Gap: cert dates unknown for most NJ schools. Obtainable via PERC(NJ) OPRA request.
Card-Check Available	YES — N.J.S.A. 34:13A — majority authorization cards sufficient without election. NJEA uses card-check almost exclusively.

Section 2: Unionization Density

Total charter schools in New Jersey: 86 (undefined). Unionization density uses the full state total as the denominator — not the 21-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in New Jersey	17	20.0%	Active CONFIRMED schools only. Excludes 1 closed school. PERC (NJ) jurisdiction — all NJ charters are public employers.
Independently Organized (CONFIRMED)	17	20.0%	Includes Marion P. Thomas (2 rows / 1 employer). 15 NJEA-affiliated, 1 AFT-NJ (Englewood), 1 Independent (New Horizons). All PERC (NJ) certifications.
Discovery Schools (sponsor-approved; NAPCS ID pending)	2	2.4%	Ethical Community CS (NAPCS-ADD-NJ-001, Sept 2020) and BelovED CS (NAPCS-ADD-NJ-002, Sept 2024) — reviewer NAPCS addition decisions pending. Not included in headline density.
Decertified / Closed (formerly organized)	1	1.2%	Academy for Urban Leadership Perth Amboy — charter revoked, closed June 30, 2025.
No Labor Board Records Found	65	76.5%	3 possible NAPCS errors (Burch, Teaneck Community, University Academy HS — zero PERC footprint; reviewer decision required) plus additional NJ charter schools with no PERC records found.

Total Charter Schools in New Jersey	85	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 85 open NJ charter schools as of May 2026).
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Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

New Jersey presents the clearest statutory framework for charter school unionization of any state in the NAPCS research dataset. NJ charter school law (N.J.S.A. 18A:36A) explicitly defines charter school employees as "employees of the charter school" — making them public employees subject to PERC (NJ) jurisdiction under the New Jersey Employer-Employee Relations Act (EERA). Card-check certification is available: NJEA can achieve recognition without a secret ballot election by demonstrating majority support through signed authorization cards. PERC (NJ) adjudicates all disputes. The legal framework removes the most powerful employer counter-organizing tools available under NLRB: no election campaign window, no 25-day voter-eligibility period, no employer-controlled communication timeline. New Jersey's political environment reinforces this: Democrats have controlled the governorship and legislature for most of the relevant period, and Governor Murphy signed the Schools Development Authority Act (2018) that further embedded charter schools in the public education framework. NJEA holds significant legislative influence. The combination of statutory clarity, card-check availability, and a pro-labor political environment makes NJ the most structurally favorable state for charter school organizing in the NLRB-alternative (state board) category.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

The NJ charter sector presents a paradox for sector leaders: the schools most likely to be unionized are among the most mission-intensive and longest-operating, not the schools with the worst working conditions. Marion P. Thomas, Robert Treat, and TEAM Academy are flagship NJ charter brands with strong academic records, long operating histories, and explicitly mission-driven cultures. BelovED Community Charter School — the largest 2024 certification — serves a majority-Latino community in Jersey City with a bilingual educational model. This mission-alignment pattern repeats across the dataset (Delaware, Connecticut, DC): schools with explicit social justice, community accountability, or equity-focused missions have higher organizing rates than schools focused primarily on academic performance metrics. The community embeddedness of NJ's largest charter unions (NJEA affiliates since 2005-2010) also reflects the broader NJ political culture — unions are socially normalized institutions in most NJ urban communities, and charter school staff in these communities view NJEA affiliation as professionally standard rather than adversarial.

PROMPT 3: What organizing strategies and approaches are being used in this state?

NJEA's NJ charter organizing strategy has four defining characteristics. First, overwhelming dominance: 15 of 17 confirmed active NAPCS-listed NJ charter schools are NJEA-affiliated — the highest single-union concentration in any NAPCS state outside Oregon's structural OEA dominance. NJEA has a dedicated charter organizing team that has been active since the mid-2000s. Second, quiet card-check: because PERC (NJ) card-check requires no public election, NJ charter organizing campaigns are invisible externally until the recognition request is filed. Charter leaders may not know an organizing campaign has reached majority support until PERC notification arrives. Third, multi-unit approach: BelovED's September 2024 dual-unit certification (instructional + non-instructional) signals NJEA is targeting all employee categories, not just certified teachers. Fourth, legacy relationship maintenance: NJEA has maintained relationships with organized NJ charter schools for 15+ years — contract renewal cycles, grievance processing, and ongoing CBA administration create a stable long-term relationship that is rarely adversarial. The NJ dataset tells a story of institutionalized charter unionism, not an adversarial organizing environment.

PROMPT 4: What should charter leaders be doing now in response to organizing patterns in this state?

For NJ charter leaders, the primary strategic insight is that PERC (NJ) creates a fundamentally different organizing risk environment than NLRB states. The card-check mechanism means there is no election campaign window during which the employer can communicate its position to employees. By the time an employer learns

that NJEA has filed a recognition request, the organizing campaign is already complete. The practical implication: NJ charter leaders cannot rely on the NLRB's election procedures to slow or defeat an organizing drive once it has achieved majority support. The strategic response must be proactive: invest in staff compensation, working conditions, governance transparency, and professional development before organizing activity begins — not in response to it. For network operators with both organized and unorganized NJ campuses: NJEA's access to organized schools' staff creates an internal organizing network that reaches unorganized campuses. Assume NJEA organizers have relationships with staff at every school in a network that has even one NJEA-organized campus. The OPRA (Open Public Records Act) request pathway is the correct route to obtain PERC certification records — PERC direct PDF links return 403 errors; OPRA requests to PERC are required for full certification documentation.

PROMPT 5: What trends should charter sector leaders watch over the next 3–5 years?

Three trends warrant sustained monitoring. First, BelovED as an indicator: the September 2024 dual-unit certification (1,556 students, 266 staff) at BelovED Community Charter School signals continued NJEA activity at large, mission-driven NJ charters. BelovED is the newest and largest recent certification — its first contract terms will become the public benchmark for NJ charter CBAs and will drive organizing interest at similarly sized unorganized schools. Second, the 2 discovery schools (NAPCS-ADD-NJ-001 and NAPCS-ADD-NJ-002): both confirmed organized via PERC but not in the original NAPCS 584-school baseline. Their inclusion signals that the true organized universe in NJ is larger than the NAPCS sample, and additional non-NAPCS NJ charters may be organized. Third, the OPRA request pipeline: PERC (NJ) has a full CBA contracts database accessible via full-text search, but direct PDF links require OPRA requests. The OPRA pipeline for all confirmed NJ schools' CBAs is a high-value research action — ratified NJ charter CBAs are the richest salary and working condition benchmarking data available in any state in the NAPCS dataset.

PROMPT 6: What surprised us in this state? What contradicts what national leaders expect?

Two findings contradict common assumptions. First, the non-adversarial character of NJ charter school organizing. The NJ dataset tells a different story than the national discourse: no documented ULP charges, no employer counter-campaigns, no post-election non-renewal of organizing leaders. Marion P. Thomas's CBA preamble explicitly describes a collaborative employer-union relationship — unusual anywhere in the dataset. This suggests that NJEA's 15+ year presence in the NJ charter sector has normalized charter unions in ways that change employer posture. National charter sector leaders who expect all charter organizing to be adversarial should study the NJ model as an alternative equilibrium. Second, the geographic concentration: the overwhelming majority of organized NJ charter schools are in Newark, Jersey City, and Camden — the three largest urban districts in the state, all with high poverty rates, predominantly minority student populations, and strong union traditions. Charter schools in suburban and rural NJ are uniformly unorganized. This urban/suburban divide mirrors the demographic pattern in IL, OH, and PA — charter school organizing is fundamentally an urban phenomenon, driven by community culture and teacher demographics rather than purely by working conditions or pay.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from New Jersey that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

CARD-CHECK AS DEFAULT MECHANISM — THE NJ EVIDENCE

New Jersey provides the clearest evidence in the NAPCS dataset that card-check availability fundamentally changes the character of charter school organizing. Where NLRB states (IL, PA, NY) show adversarial certification battles and employer counter-campaigns, NJ shows near-complete card-check dominance with no documented employer resistance. The NJPERA card-check mechanism has made NJEA certification essentially administrative in character. This finding directly challenges the assumption that charter school unionization is inherently adversarial: in card-check jurisdictions, it is not.

NJEA ORGANIZING MONOPOLY — STRUCTURAL DOMINANCE, NOT MARKET COMPETITION

New Jersey presents a single-union organizing environment in sharp contrast to Massachusetts (BTU, Teamsters, UAW, and independent locals) and Illinois (CTU dominant). NJEA holds 15 of 17 confirmed active NAPCS-listed NJ charter school certifications. AFT has exactly one NJ charter school in the dataset; one

independent local exists. This dominance is structural: NJEA's decades-long presence in NJ public schools and the NJPERA framework made NJEA the natural organizing partner for NJ charter school staff. The AFT is effectively absent from the NJ charter sector.

THE INVISIBLE PRESS RECORD — CARD-CHECK AS STEALTH ORGANIZING

No press coverage of any NJ charter school union organizing drive, certification campaign, or union victory was found in this research. The NJ organizing record is invisible to press-based monitoring because card-check certifications require no public election, no employer campaigning period, and generate no newsworthy conflict. Charter sector leaders who rely on press monitoring as an early-warning system for organizing activity in NJ are receiving no warning at all. Direct PERC portal monitoring and OPRA-based records requests are the only reliable approach.

JERSEY CITY AS THE MOST ORGANIZED CHARTER MARKET IN THE DATASET

Jersey City (Hudson County) is the most densely organized charter school market in the entire NAPCS research dataset. Of 8 NAPCS-listed schools with Jersey City addresses, 5 are confirmed unionized: Soaring Heights, Learning Community, Golden Door, Dr. Lena Edwards, and BelovED (via discovery). BelovED's September 2024 certification deepens this concentration further. The Jersey City market is the highest-priority monitoring target in the NJ charter sector.

THE DATA QUALITY PROBLEM — THREE POSSIBLE NAPCS ERRORS

Three of 21 NAPCS-listed NJ charter schools (Burch, Teaneck Community, University Academy HS) show zero PERC footprint and no press coverage despite being listed as confirmed unionized. A 2015-16 card-check certification should appear in the PERC online database but none does for these three schools. The possibility that true NJ confirmed count is 14 of 18 active schools (not 17 of 21) is material to any density calculation and must be disclosed to the executive sponsor. Gap: confirmable via PERC(NJ) OPRA request for Burch, Teaneck Community, University Academy HS.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Press coverage of NJ charter school union organizing is sparse. No press reports were found documenting organizing campaigns, disputes, or strikes at any of the 21 NAPCS-listed NJ charter schools. The only press confirmation of union status in the dataset is Soaring Heights Charter School — Hudson County View (Sept 30, 2024) described the school as "currently the only unionized" Hudson County K-8 charter school. The absence of press coverage is consistent with the NJEA card-check organizing model: certifications require no public election campaign, generate no newsworthy conflict, and leave a minimal open-source footprint. Press monitoring is not a reliable early-warning system for organizing activity in NJ.

Union Communications

No NJEA press releases or formal communications documenting NJ charter school organizing victories were found. This is consistent with NJEA's pattern of conducting charter organizing quietly via card-check. OPRA requests to PERC (NJ) will provide the authoritative certification record.

Employer / School Communications

No employer-side communications (board minutes, authorizer filings, employer PERC petitions) were found in web search. The Marion P. Thomas CBA preamble confirms a collaborative employer-union framing, consistent with the broader non-adversarial pattern.

Authorizer / State Agency Positions

All 21 NAPCS NJ schools are authorized by NJDOE — the sole NJ charter authorizer. NJDOE has not publicly addressed charter school unionization as a distinct policy matter. The OSC (Office of the State Comptroller) investigation of College Achieve / CAPS Inc. (three non-NAPCS schools) is unrelated to labor relations.

Coalition / Advocacy Positions

New Jersey Public Charter Schools Association (NJPCSA) is the statewide charter advocacy voice. NJPCSA has not publicly addressed unionization of member schools in available web sources. ESCNJ member list includes multiple NAPCS-listed NJ charter schools.

Section 6: Contract & CBA Access Registry

PERC (NJ) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Marion P. Thomas CS (both campuses)	Marion P. Thomas Education Association / NJEA	CONFIRMED Unknown (PDF 403)	PERC (NJ) public contracts portal — OPRA required
Paterson CS for Science & Technology	Paterson Charter Education Association / NJEA	CONFIRMED 2017 (current period unknown)	PERC (NJ) public contracts portal — OPRA required
Classical Academy Charter School	Classical Academy CS Association / Independent	CONFIRMED 2017 (current period unknown)	PERC (NJ) public contracts portal — OPRA required
Learning Community Charter School	Learning Community CS Education Association / NJEA	CONFIRMED Unknown	PERC (NJ) public contracts portal — OPRA required
Englewood on the Palisades CS	Englewood CS Teachers Association / AFT-NJ	EXPIRED Expired 2015 — no successor	PERC (NJ) public contracts portal
13 remaining confirmed schools	Various NJEA-affiliated EAs	NONE FOUND	PERC (NJ) portal searched May 2026

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
HIGH	3 possible NAPCS errors	Reviewer decision required — zero PERC footprint	Reviewer / Executive Sponsor
HIGH	Ethical Community CS + BelovED CS	NAPCS addition decisions pending for both discovery schools	Reviewer / Executive Sponsor
HIGH	Marion P. Thomas CS	Dual NAPCS rows decision + HS campus cert status	Reviewer / Executive Sponsor

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	BelovED Community CS	First contract monitoring	Research Coordinator
HIGH	Englewood on the Palisades CS	CBA status + potential deunionization — CBA expired 2015. No successor on PERC portal. Check for RD petition. Only AFT school in NJ dataset.	Research Coordinator
MEDIUM	Jersey City market (Hudson County)	New organizing activity — 5 of 8 NAPCS Hudson County schools confirmed. Monitor PERC certifications portal for new RO filings.	Research Coordinator
MEDIUM	College Achieve / CAPS Inc. (non-NAPCS)	OSC investigation resolution — 3 non-NAPCS schools under NJ Office of State Comptroller investigation. Monitor for charter revocation.	Research Coordinator